

FILED

JUL 07 2021

TIME: _____ M
BETTE S. GREEN, CLERK
ST. FRANCIS COUNTY

IN THE CIRCUIT COURT OF ST. FRANCIS COUNTY, ARKANSAS

WILLIAM OGLE

PLAINTIFF

V.

NO. 62CV-21-117-2

**COVENANT TRANSPORT INC and
CHRISTOPHER MOORE**

DEFENDANTS

COMPLAINT

Comes the Plaintiff, by and through counsel Matthew E. Hartness, and for his cause of action, states:

1. Plaintiff is a resident of Columbia County, Arkansas
2. Plaintiff's cause of action arises from a motor vehicle collision which occurred in St. Francis County, Arkansas.
3. Defendant Covenant Transport Inc, hereinafter referred to as "Covenant," is a foreign corporation doing business in St. Francis County, Arkansas. Defendant Christopher Moore is a resident of the State of Florida.
4. This Honorable Court has personal and subject matter jurisdiction over this matter and venue is proper herein.
5. On July 13, 2019, Plaintiff was a passenger in a 2018 Freightliner tractor trailer being driven by Defendant Christopher Moore which was traveling on the Interstate 40 westbound ramp at exit #241B in St. Francis County, Arkansas. Defendant Christopher Moore was driving too fast as he was driving on the exit, causing the truck to overturn and slide 38 feet down a hill.
6. The actions of Defendant Christopher Moore, for which Defendant Covenant is also responsible, were the proximate cause of the injuries and damages sustained by Plaintiff. Specific acts of negligence include, but are not limited to, the following:
 - a. Failing to keep a proper lookout;
 - b. Failing to keep the vehicle he was driving under proper control;
 - c. Careless and prohibited driving;
 - d. Driving too fast; and,

e. Otherwise failing to exercise ordinary care under the circumstances.

7. At the time of the crash which gives rise to this cause of action Defendant Christopher Moore was operating a vehicle owned by Defendant Covenant. At all times relevant to this cause of action, Defendant Christopher Moore was acting within the course and scope of his employment with Defendant Covenant. Under the doctrine of *respondeat superior*, Defendant Covenant is vicariously liable for any damages which resulted from the negligence of Defendant Christopher Moore.

8. As a proximate result of the conduct of Defendant Christopher Moore, Plaintiff sustained the following injuries and damages:

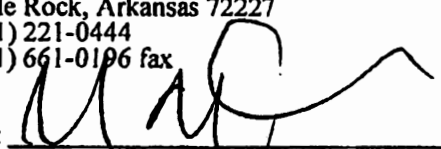
- a. permanent physical injury;
- b. pain, suffering and mental anguish experienced in the past and reasonably certain to be experienced in the future;
- c. medical expenses incurred in the past and reasonably certain to be incurred in the future;
- d. scars and disfigurement; and,
- e. loss of earnings and earnings capacity.

9. Plaintiff's unliquidated damages exceed the current minimum requirement for federal court jurisdiction in diversity of citizenship cases. Plaintiff furthermore demands a trial by jury.

WHEREFORE, Plaintiff prays for judgment of and from the Defendants, in an amount adequate to compensate him for the damages he has sustained, which amount exceeds the current minimum amount required for federal court jurisdiction in diversity of citizenship cases. Plaintiff further prays for costs, interest and all other just and proper relief to which he may be entitled.

Respectfully Submitted,

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